Ex Tempore

THE SHERIFF OF ZIMBABWE
versus
FOREST LODGE NURSERY (PRIVATE) LIMITED
and
NMB BANK LIMITED

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 11 and 12 June 2026.

Interpleader proceedings

E. Jojo, for the Applicant.
A. Chihombori, for the Claimant.
G. Ndlovu, for the Judgment Creditor.

DEME J: The Applicant approached this court seeking the determination of competing claims, a remedy established in terms of Rule 63. The Judgment Creditor obtained judgment against Forest Lodge Flowers (Pvt) Ltd (hereinafter called "the Judgment Debtor") in case number HCH3889/25 on 5 September 2025. The Judgment Creditor instructed the Applicant to attach the property to satisfy the judgment debt. The Applicant complied with the instruction on 5 February 2026.

Upon attachment of the property, the Claimant laid claim to the following property:

a. Nissan Diesel Lorry Registration Number AAW 0040.

b. Container Trailer Registration Number AAY1454.

c. Tractor trailer without registration.

d. Tractor trailer.

e. Irrigation trailer.

f. Ridges.

g. Ridger

With respect to Nissan lorry, the Claimant attached, to its affidavits, the letter from insurance company. The claimant also attached, to its affidavits, the insurance schedule for the vehicle. In order to motivate the claim for ownership of the container trailer, the Claimant favoured this court with registration book for the vehicle. The Claimant, additionally, tendered an asset register to buttress its claim for the rest of the property.

In the heads of argument, the Claimant insisted that the property listed in the asset register was identified by different names. In the heads of argument, the Claimant stated that:

> "Therefore, the tractor trailers were identified as farm trailers under the "motor vehicles and tractors" heading in the asset register. The irrigation trailers are identified as PTO sprayers in the asset register under the "plant and machinery" heading, since the Claimant's employees use them to spray flowers. The ridgers and ridger were correctly identified as 2 tynee rippers x3 under the "plant and machinery" heading. There are no ridgers at Claimant's premises. Therefore, there was just a discrepancy in Applicant's description of the property as compared to the Claimant. The asset register was compiled in January 2026 before the assets were attached therefore Claimant described the assets in a manner which was suitable to it."

In the opposing affidavit and heads of argument, the Claimant raised a preliminary issue to the effect that the Judgment Debtor was placed under provisional liquidation by this court. According to the Claimant, the execution of the judgment ought to be stayed. However, the Claimant abandoned this preliminary issue on the day of hearing.

The matter was opposed by the Judgment Creditor. The Judgment Creditor averred that the Claimant failed to prove ownership of the claimed goods on a balance of probabilities. Mr. *Ndlovu* argued that the evidence attached in respect of the Nissan lorry does not prove ownership. He submitted that the evidence of insurance cannot be used to prove ownership of the vehicle.

With respect to the container trailer, the Judgment Creditor maintained that registration book alone cannot be used to prove ownership. Reference was made to the case of *Sheriff* v *Hensman and Anor*[1].

The Judgment Creditor additionally insisted that the Claimant failed to prove ownership for the rest of the property. According to the judgment Creditor, an asset register cannot be used to prove ownership. The Judgment Creditor further affirmed that the property listed in the asset register does not match the property claimed and attached by the Applicant.

On the day of hearing, Ms *Chihombori* applied for the upliftment of the bar following the Claimant's failure to file opposing papers within the specified time lines. The application was not opposed. Consequently, an appropriate order was made to this end.

What remains for determination is whether the Claimant has managed to prove ownership of the property on a balance of probabilities.

It is a salutary principle in our jurisdiction that a claimant, in interpleader proceedings, must, on a balance of probabilities, prove ownership of the goods attached, failing which the claim may be dismissed. Reference is made to the cases of *Welli-Well (Pvt) Ltd* v *Imbayago and Another*[2] and *A. Raziya Kazi* v *The Sheriff of Zimbabwe and Ors*[3]. The Claimant's claim to Nissan lorry is allegedly buttressed by the letter from the insurer and insurance schedule. The Claimant's counsel was not able to give a satisfactory explanation why proof of registration for the vehicle was not made available for the court despite the fact that registration is a legal requirement for vehicles. I do agree with Mr. *Ndlovu's* submissions that insurance cannot prove ownership of the vehicle. Insurance policy may have to be backed by additional evidence.

[1] HH130/18.

[2] SC 8/21

2. SC26/22

Further, the letter from the insurer, on page 86, does not establish ownership. The contents of the letter from Evolution Insurance Company are as follows:

> "This serves to confirm that Mr. and Mrs Thompson had the above-mentioned vehicle issued under the Forest Lodge insurance policy from 1st October 2011 to the year 2018.
>
> Please feel free to get hold of me should you have any queries."

The period for insurance is undoubtedly not current. The insurance of the vehicle ceased in 2018 according to the letter. What happened after 2018 remains ambiguous. On this basis, the letter cannot be used to prove ownership of the Nissan lorry.

The Claimant also attached the insurance schedule on pages 87-89. The latest period outlined in the insurance schedule is 2021. Reference is made to page 87. The period for insurance is not up to date. For this reason, the insurance schedule lacks probative value.

Curiously, both documents, the letter and the insurance schedule do not refer to the Claimant namely Forest Lodge Nursery (Pvt) Ltd. The two documents refer to Forest Lodge. The name "Forest Lodge" is a common denominator for the Claimant and the Judgment Debtor. I hold the view that the name "Forest Lodge" can refer to either the Claimant or the Judgment Debtor. On this basis, the Claimant failed to prove ownership of the Nissan lorry.

With respect to the container trailer, it is a well settled principle that registration alone cannot be used to prove ownership in the absence of supporting evidence. Reference is made to the case of *Sheriff of Zimbabwe* v *Hensman and Anor supra*. The Claimant ought to have gone a step further and furnish the court with sufficient evidence. On this basis, the Claimant failed to prove ownership of the container trailer on a balance of probabilities.

Regarding the rest of the property, the Claimant supplied this court with an explanation in the heads of argument. Such explanation has been captured before in this judgment. Mr. *Ndlovu* submitted that the Claimant cannot purport to offer factual matrix in the heads of argument and oral submissions. He referred the court to the case of *ZBC* v *Flame Lily Broadcasting (Pvt) Ltd*[4]. Ms *Chihombori*, responding to this, argued that interpleader proceedings are unique in nature and hence the court may not have to be rigid.

[4] 1999 (2) ZLR 448 (H).

It is common cause that the Claimant sought to reconcile the description of the property listed in the asset register against the property attached. The Claimant failed to tender such explanation in the two affidavits which are before this court. No explanation was tendered for this failure. The Claimant filed its opposing affidavit on 30 March 2026 six days after the Judgment Creditor had filed its opposing affidavit. The Claimant had six days to consider the issues raised by the Judgment Creditor in its opposing affidavit. One of the issues raised is the mismatch of the property listed in the asset register against the property attached. The Claimant missed an opportunity to harmonise the discrepancy.

The Claimant cannot supplement the factual matrices through heads of argument and oral submissions. The Claimant ought to have sought leave to file supplementary affidavit instead.

In any event, an asset register lacks probative value. Asset registers can be authored at any time. An asset register may have to be substantiated by extra evidence for it to be relevant. On this basis, I am of the view that the Claimant failed to prove ownership of the rest of the property on a balance of probabilities. In the circumstances, the claim is unmerited. The claim ought to be dismissed.

The Applicant had prayed for costs on an attorney and client scale. No justification was advanced in this regard. Costs on an ordinary scale are reasonably sufficient, in my view. In the premises, it is ordered as follows:

a. The Claimant's claim to the movable property described in its interpleader affidavit, attached by the Applicant pursuant to execution of judgment in HCH 3889/25, be and is hereby dismissed.
b. The movable property attached and described in the Claimant's interpleader affidavit be and is hereby declared executable.
c. The Claimant shall pay storage costs associated with the attachment of the property.

d. The Claimant shall pay the Claimant's and the Applicant's costs of suit on an ordinary scale.

DEME J:……..……

Dube-Banda Nzarayapenga & Partners, Applicant's Legal Practitioners
Sibanda and Partners, Claimant's Legal Practitioners
Gill, Godlonton & Gerrans, Judgment Creditor's Legal Practitioners